SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 3843 of 2020 (YEAR: 2020)

CORAM: D.Y. CHANDRACHUD, INDU MALHOTRA, INDIRA BANERJEE

State of Uttarakhand
... Appellant(s) / Petitioner(s)
Versus
Smt. Suman
... Respondent(s)

Acts Referred:	Maternity Benefit Act, 1961, Constitution of India
Sections:	Section 5 Maternity Benefit Act, Article 42

JUDICIAL HEADNOTE & SUMMARY

Held that contractual female employees are entitled to full maternity benefits on equal footing with regular staff, in accordance with social justice under Article 42.

RATIO DECIDENDI

The Court held that: Held that contractual female employees are entitled to full maternity benefits on equal footing with regular staff, in accordance with social justice under Article 42. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in State of Uttarakhand v. Smt. Suman (Civil Appeal No. 3843 of 2020) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Maternity Benefit Act, 1961, Constitution of India, particularly Section 5 Maternity Benefit Act, Article 42. Held that contractual female employees are entitled to full maternity benefits on equal footing with regular staff, in accordance with social justice under Article 42.

OPERATIVE ORDER

ORDER: Decided